

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

DEFENDANTS' MOTION FOR SANCTIONS

This matter involves a lengthy dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") On June 13, 2025, the Court denied Helen Ariza ("Plaintiff")'s motion to disqualify attorney Kathleen E. Finnerty, Esq. ("Finnerty") who has been retained to represent Defendants Lakeside Ventures LLC ("Lakeside") and Bonnie Hurley (aka Tuckerman-Aho) ("Tuckerman-Aho") (collectively, "Defendants".)

Now before the Court is Defendants' motion for sanctions pursuant to Code of Civil Procedure section 128.7.

I. Background

During a phone call with Finnerty on April 18, 2025, Plaintiff alluded to her intention to file a motion to disqualify based on her unsubstantiated belief that Mr. Tuckerman was paying Defendants' legal fees. (Finnerty Decl. ¶ 4(a).) During that call, Finnerty informed Plaintiff that such unsubstantiated belief was not proper grounds to bring a motion to disqualify (*Id.*, ¶ 4(a)(b).) Finnerty received a copy of the motion on May 9, 2025. (*Id.* ¶ 4(d).) On May 10, 2025, Finnerty wrote to Plaintiff outlining the multiple reasons her motion was far below pleading standards, even for self-represented litigants, and demanded a withdrawal of her motion by May 13, 2025. (*Id.* ¶ 4(e)., Ex. B.) Plaintiff did not respond to that letter and instead served it on the evening of May 15, 2025. (*Id.* ¶ 4(f).)

On May 16, 2025, Finnerty served her opposition to the motion and all supporting documents on Plaintiff together with correspondence stating that she had twenty-one days within which to withdraw the motion or she would file this motion for sanctions. (*Id.* ¶ 8, Ex. C.) Plaintiff did not withdraw the motion and the Court ruled against Plaintiff on June 13, 2025.

Defendants seek \$8,733.50 in attorney's fees as well as an order striking the motion to disqualify.

II. Legal Standard

Code of Civil Procedure section 128.7 states:

- (b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:
 - (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.
 - (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
 - (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
 - (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.
- (c) If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the

attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation.

- (d) A sanction imposed for violation of subdivision (b) shall be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.

II. Discussion

Code of Civil Procedure section 128.7 “ ‘authorizes trial courts to impose sanctions to check abuses in the filing of pleadings, petitions, written notices or motions or similar papers.’ ” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1120 [citation omitted].)

However, its use is rare and should only be utilized in the “ ‘rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.’ ” (*Ibid.*) Defendants complied with the safe harbor provision required for motions under Code Civ. Procedure section 128.7.

Plaintiff’s motion to qualify was brought without any legal basis and without standing. As the Court stated in its ruling denying the Plaintiff’s motion to disqualify:

Plaintiff’s motion to disqualify lacks any showing that she has standing to bring this motion. First, there was clearly never an attorney-client relationship between Plaintiff and Finnerty. Second, the motion is completely devoid of any evidence (or coherent allegation) that Plaintiff has a personal stake in Ms. Finnerty’s disqualification or any purported reason for the disqualification. The only stake Plaintiff has alleged is her general interest in the outcome of the litigation itself.

Plaintiff’s opposition to the motion for sanctions repeats her arguments as to why Finnerty should be disqualified. Her only reference to the motion for sanctions is that Finnerty and Defendants’ various behaviors probably increased any costs or fees incurred.

The Court previously found that Plaintiff’s motion to disqualify was brought without any legal justification or evidentiary support and considers that it may well have been brought for the improper purpose of harassing Defendants. Plaintiff has a history of bringing motions before the Court which are procedurally defective or substantively meritless. The Court therefore exercises its discretion to grant sanctions against Plaintiff pursuant to Code Civil Procedure section 128.7(c.)

When imposing a sanction under this section of the Code, the Court must limit the sanction to “what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.” (*Id.* subd (d).) Given Plaintiff’s propensity for filing legally unsubstantiated motions, the Court must award sanctions in an amount that may deter her from engaging in further such conduct. Initially the Court notes that while phrased as requested attorney’s fees, the amount of \$8,733.50, is requested without any details or basis for how that amount was derived. While presumably the total amount reflects the attorney’s fees charged to defendants for efforts related to the motion to disqualify (and likely the current motion for sanctions) no information has been provided to the Court as to hours spent, tasks those hours were spent on, or the requested hourly billing rate, thus preventing the Court any analysis as to whether some or all of these factors meet the standard of meeting the going rate within this market. Additionally, CCP 128.7 does not provide for attorney’s fees as such but, rather, a sanction to deter future improper conduct. Taking into account plaintiff’s status as a self-represented litigant in the context of the statute, the Court finds sanctions in the amount of \$1,500.00 such suffice as such a deterrent.

Accordingly, defendants’ Motion to Impose Sanctions is **GRANTED**. Plaintiff is to pay defendants’ counsel the amount of **\$1,500.00, to be paid within thirty (30) calendar days** of the service of this Ruling.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to prepare a formal Order in conformity with the Ruling and complying with Rule of Court 3.1312.

JP MORGAN CHASE BANK N.A. v BURNELL

24CF14691

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

Plaintiff JP Morgan Chase Bank ("Plaintiff") sued Defendant Nicole M. Burnell ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFAs").

On January 8, 2025, Plaintiff served by mail its first set of requests for admissions on Defendant. (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) On or about February 28, 2025, Plaintiff's counsel attempted a meet and confer by sending a letter to Defendant regarding the outstanding discovery and offering additional time to respond. (Parks Decl. ¶ 4, Ex. 2.) As of the filing of Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFAs. Defendant has also not filed any opposition to the Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the